

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On November 30, 2022, a complaint was filed with the Spanish Agency for Data Protection against the General Directorate of the Civil Guard, with NIF ***NIF.1 (hereinafter, the complained party).

The grounds for the complaint are as follows:

The complainant alleges an incident with an off-duty civil guard with whom they had a supposed traffic altercation on September 30, 2022. The complainant states that they were driving a car and the complained party was on their personal motorcycle, and requested their documentation and that of the vehicle, taking a photograph. After stopping them and verbally identifying themselves, the complained party requested the aforementioned documentation and photographed it with their personal mobile phone. The complained party called for the presence of a patrol from the Local Police of Almería, which arrived at the scene and prepared a report of the events, attached to this complaint, which records the account given and that the complained party deleted the photographs of the incident in the presence of the local police officers. The complainant also notified the Local Police.

Along with the notification, the report issued by the Local Police Headquarters of Almería is provided, which states the following:

"That the Operations Room 092 commissions the Bravo 30 unit, composed of agents with professional numbers ***AGENTE.1 and ***AGENTE.2, who arrive at the scene and report that upon their arrival, the accused A.A.A. states that they were circulating through the roundabout exiting Plaza Barcelona towards AL12 in the direction of Málaga, when the complainant B.B.B. appeared on their motorcycle, cutting in from the right side, overtaking them and shouting at them. At that moment, the complainant verbally identifies themselves as a Civil Guard and instructs them to stop right at the Command Headquarters, asking for their personal documentation, taking a photo with their personal mobile phone and not identifying themselves at any time with their badge. The complainant, a Civil Guard, requests a Local Police patrol to file a complaint regarding the events, which is voluntarily carried out by the agent, stating that the driver of the reported vehicle shouts at them disrespectfully. For these events, they verbally identify themselves by their position and instruct them to stop at the door of the Command Headquarters. The Agent in our presence proceeds to delete the photos they had taken of the documentation of the accused. Witness C.C.C. states that they saw the traffic events, corroborating the facts reported by the driver of the car. The parties are informed for their knowledge."

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (in

forward LOPDGDD), the complaint was forwarded to the party being complained against, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on December 15, 2022, as recorded in the acknowledgment of receipt in the file. On February 6, 2023, a response was received by this Agency indicating that the Command of Almería has reported, in summary, the following: that on September 30, 2022, at approximately 8:05 AM, there was an alleged traffic altercation between a citizen driving their vehicle and a Civil Guard officer who was riding a motorcycle and was not on duty. The motorcycle driver requested the vehicle driver to stop at the main entrance of the Civil Guard Command of Almería. The Civil Guard called the Local Police to file a voluntary complaint for a presumed traffic violation that he had observed. At no time did he request the personal and vehicle documentation from the driver, citing his condition as a Civil Guard; he states that the vehicle driver voluntarily showed him the documentation and that he photographed it with his personal mobile phone in case the driver left, proceeding to delete it when the

Local Police arrived.

THIRD: On February 16, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred upon each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Excessive processing of personal data

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In Article 5 of the GDPR, the principles regarding the processing of personal data by the data controller and/or processor are established, and in its section 1.c), it specifies that "the processing of personal data must be adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed," known as the principle of "data minimization."

It should be clarified that this article does not limit the excess of data but rather the necessity. That is to say, personal data must be "adequate, relevant, and limited to what is necessary" for the purpose for which they were collected; in such a way that, considering the circumstances that occurred at the time, if the objective pursued for obtaining the personal data could have been achieved by other means, without carrying out excessive data processing, that means should have been used, in any case. This is also stated in Recital 39 of the GDPR, which indicates that: "Personal data should only be processed if the purpose of the processing could not reasonably be fulfilled by other means."

In the case at hand, the person involved in the alleged altercation took a photograph of documents containing the personal data of the driver of the vehicle involved and the documentation of the same, in anticipation of the possibility that they might leave, and in that case, to be able to submit the complete voluntary report.

Firstly, there is a discrepancy in the statements regarding the voluntariness of providing those documents to the motorcycle driver, a Guardia Civil officer who was off duty. The respondent states that the documents were voluntarily provided by the claimant, while the latter does not indicate the same. On the other hand, the need to take the data seemed to stem from the possibility that the claimant might leave without identification. Finally, the author of the photographs deleted them immediately in the presence of the Local Police, as evidenced in the documentation provided.

That is to say, the events occurred under circumstances to be taken into account: the motorcycle driver was acting as a party involved in an alleged traffic altercation and not as a Guardia Civil officer; he notified the Local Police to file a complaint; and in light of the possibility that the claimant might leave, he photographed the claimant's data to complete the report. When the Local Police arrived, the photographs taken were deleted.

The fact that the respondent thought that the claimant might leave to go to work made him take extra precautions and ensure that the driver and vehicle involved in the altercation were perfectly identified, using an exceptional means of identification such as taking photographs with a mobile phone. All this, combined with the fact that, once the necessary checks were made for identification, the images taken with the mobile were deleted, as confirmed by the Local Police.

Therefore, based on the evidence obtained under the circumstances outlined above, there is a discrepancy between the two versions provided by the claimant and the respondent, which, together with the fact that the aforementioned photographs were deleted from the device and the principle of presumption of innocence, do not allow for the establishment of an infringement within the jurisdiction of the Data Protection Agency.

III

Conclusion

Therefore, based on the indications in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Data Protection Agency.

Thus, in accordance with what has been stated, the Director of the Spanish Data Protection Agency, IT IS AGREED:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to the General Directorate of the Guardia Civil and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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